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PRESENTENCE REPORT COUNTERFACTUAL BRANCH — NEVER
FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED
FICTIONAL DOCKET SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED**

Never-Filed Opinion, Order, and Judgment Dismissing Appeal

Never-entered date: April 10, 2026 **Isolated synthetic docket:** SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED **Never-filed document number:** 9

Before fictional panel members Slate, Alder, and March is the government's first threshold motion. The government asks for dismissal under Rule 4(b) and alternatively invokes Serrano's appeal waiver. Serrano opposes dismissal while accepting the dates and completed extension record.

The panel grants the motion on the Rule 4(b) ground and dismisses the isolated appeal. The notice was filed on day 15, the district court found neither excusable neglect nor good cause and declined an extension, and the government promptly invoked the mandatory claim-processing rule in its first substantive filing about disposition.

Because that ground resolves the entire appeal, the panel does not reach the alternative waiver argument, the merits of the § 3B1.1(b) role dispute, or the merits of the expressly reserved allocation claim. This opinion and judgment were never issued on the actual docket and affect only the separately labeled counterfactual matter.

Deadline and Filing Date

The district judgment was entered Wednesday, February 25, 2026. Rule 4(b)(1)(A) provided 14 days for Serrano's notice. Excluding the trigger date under Rule 26(a), the period ended Wednesday, March 11.

Counsel delivered the branch notice directly to the district clerk on Thursday, March 12. Nothing was deposited earlier through an institution's internal mail system. No motion described in Rule 4(b)(3) postponed the period, and the clerk's office was accessible on the final day. No government notice or other event changed the calculation.

The March 12 receipt was therefore day 15. The parties do not dispute that arithmetic. Serrano instead relies on Rule 4(b)'s nonjurisdictional status and challenges the promptness and consequence of the government's later invocation.

The panel accepts that Rule 4(b) is not jurisdictional. *United States v. Marsh*, 944 F.3d 524 (4th Cir. 2019). The issue is whether the mandatory claim-processing rule must be enforced on this returned record after the government expressly invoked it.

Completed Rule 4(b)(4) Inquiry

The appellate clerk opened the isolated matter on March 16 and the panel promptly remanded for a limited extension determination. Serrano then filed a statement disclaiming a Rule 4(b)(4) request, excusable neglect, good cause, and any underlying excuse.

On March 20, Judge Elara Venn found that the filing occurred on day 15 and that no alternative timing rule applied. She separately found neither excusable neglect nor good cause and declined to extend the period. The certified record returned March 23.

Rule 4(b)(4) allows the district court to act with or without a motion, but it still requires the specified finding. The record contains the opposite finding. The appellate panel cannot invent an extension or use general equity to replace the rule's procedure. Marsh requires strict enforcement when Rule 4(b) is properly invoked.

Serrano's opposition appropriately does not attempt to reopen the extension decision. His remaining contentions concern government forfeiture and the substantive importance of allocution. Those questions are addressed next without disturbing the district findings.

Government Invocation Was Prompt and Complete

The government's March 25 motion was its first substantive filing addressing disposition. The preceding case-opening order, limited remand, district order, certified return, and resumption notice were actions of the courts or clerks. The government had filed no earlier motion or brief.

The first disposition response arrived two days after the extension record returned. It expressly raised both apparent threshold grounds: Rule 4(b) and the plea waiver. That timing preserved the filing objection under *United States v. Brantley*, 87 F.4th 262 (4th Cir. 2023), and its combined presentation avoided the omission problem described in *United States v. Kemp*, 88 F.4th 539 (4th Cir. 2023), and Local Rule 27(f)(2).

Serrano argues that the government knew of the issue during remand. Knowledge is not an earlier disposition filing, and the abeyance existed to determine whether an extension would be granted. The government did not litigate merits before invoking the rule.

The panel holds that the invocation was prompt. Rule 4(b) must therefore be applied as a mandatory claim-processing rule on the undisputed day-15 record.

Substance, Disposition, and Judgment

Serrano emphasizes that his plea expressly preserves a claim of complete denial of allocution. That reservation affects waiver scope, but it cannot create an exception to Rule 4(b)'s filing requirement. Brantley applies the criminal notice rule without regard to the nature or apparent strength of the asserted error after prompt government invocation.

The government's motion is therefore GRANTED on the Rule 4(b) ground, and the isolated appeal is DISMISSED in full. The notice arrived after the 14-day period, the district court granted no Rule 4(b)(4) extension, and the government invoked the rule in its first disposition filing.

The panel does not reach the alternative waiver ground. It does not decide whether Serrano supervised Alina Pared, whether the sentencing court completely denied allocution, whether counsel's advocacy was sufficient, or whether a lower sentence was possible. No merits remedy is considered. The February 25 district judgment remains undisturbed within this branch solely because the appeal is dismissed.

The clerk shall enter judgment on April 10, 2026. Slate writes for a unanimous fictional panel joined by Alder and March. This disposition belongs only to the isolated docket, requires no sealed record, and neither replaces the actual March 11 notice nor creates any actual-docket ruling or mandate.

Rehearing Interval and Clerk Certification

Opinion, order, and judgment are entered together on Friday, April 10, 2026. Under Rule 40(d) (1), the ordinary 14-day period for a petition for panel or en banc rehearing expires Friday, April 24. The court does not shorten or enlarge that interval.

If no timely petition or other mandate-staying paper is filed, Rule 41(b)'s ordinary seven-day interval follows expiration of the rehearing period. On this calendar, the seven days run through Friday, May 1. This statement describes the usual rule; a later source must certify whether the predicate actually occurred.

Maela Cross certifies the never-entered judgment and fictional service on Celia Arden and Bram Ives. No genuine address, email, account, court credential, or filing-system instruction appears. The clerk records no petition as of the moment of entry on April 10.

This six-page source is isolated counterfactual material. It was never issued in SYN-CA4-26-CR-4201, expresses no outcome there, and cannot alter any actual district or appellate proceeding.